

**Court No. - 3**

**Case :-** WRIT - C No. - 5040 of 2024

**Petitioner :-** Smt. Nussarat Jahan

**Respondent :-** U.P. Power Corporation Limited  
Thru. Managing Director Lko. And Another

**Counsel for Petitioner :-** Naqibullah  
Khan, Ambrish Kumar Dubey

**Counsel for Respondent :-** Aprajita Bansal

**Hon'ble Mrs. Sangeeta Chandra, J.**

**Hon'ble Brij Raj Singh, J.**

1. Heard learned counsel for the petitioner and Ms. Aprajita Bansal, learned counsel for the respondents.

2. This writ petition has been filed with the following main prayer:-

*"(i) a writ, order or direction in the nature of mandamus commanding the opposite parties to correct the meter reading in accordance with law."*

3. It is the case of the petitioner that an arbitrary bill has been raised to Rs.28,579/- by the respondents. The petitioner's representation in this regard has not been considered.

4. Ms. Aprajita Bansal has pointed out that there is a statutory remedy available to the petitioner under Paragraph-6.5 of the Electricity Supply Code. She has also pointed out that the bill that has been raised is of Rs.31,546/- after proper meter reading was done.

5. This writ petition is ***disposed of*** with a direction to the petitioner to file an application under Paragraph-6.5 of the Electricity Supply Code before the opposite party no.2 within a week from today. If such an application is filed within the time prescribed, the opposite party no.2 shall ensure that all necessary formalities are completed by the petitioner in accordance with the rules applicable and then decide the application in accordance with the statutory provisions within a further period of

three weeks, thereafter.

6. For a period of five weeks or till decision is taken by the opposite party no. 2 on the application of the petitioner made under Paragraph-6.5 as aforesaid, whichever is earlier, no coercive steps be taken against the petitioner for recovery of Rs.31,546/-. The benefit of this order shall not be available to the petitioner, in case the petitioner does not file her application within one week from today before the opposite party no.2.

**Order Date :-** 31.5.2024  
Darpan Sharma